

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ADAM LOPEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, P.O. DAMON FORD,
SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O.
PARTNER ON ARREST #BO7672768 AND DOCKET
#2007BX058059 ALSO OF THE 41ST PRECINCT,**

Defendants.
-----X

Index No.:

Date Purchased ____

Plaintiffs designate **BRONX**
County as the Place of Trial

The basis of the
venue is

**WHERE THE TORT
AROSE**

SUMMONS

Bronx, New York

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 18, 2008

PAPA, DEPAOLA AND BROUNSTEIN
Attorneys for Plaintiffs

By: JOHN R. DEPAOLA
42-40 Bell Boulevard
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. DAMON FORD
SHIELD #10308
41st Precinct
1035 Longwood Avenue
Bronx, New York 10459

**P.O. PARTNER OF DAMON FORD
ON ARREST #B07672768 AND
DOCKET #2007BX058059**
41st Precinct
1035 Longwood Avenue
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ADAM LOPEZ,

Index No.:
Date Purchased ____

Plaintiff,

-against-

VERIFIED COMPLAINT

**THE CITY OF NEW YORK, P.O. DAMON FORD,
SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O.
PARTNER ON ARREST #BO7672768 AND DOCKET
#2007BX058059 ALSO OF THE 41ST PRECINCT,**

Defendants.

-----X

ADAM LOPEZ, by his attorneys, **PAPA, DEPAOLA AND BROUNSTEIN**,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **ADAM LOPEZ**, was a resident of Bronx County in the City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK** was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 25th day of October, 2007 and within ninety (90) days after the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action was commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. Upon information and belief, at all times mentioned, Defendant **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, were and are police officers of the Defendant **CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agent, servant and employee of the Defendant **CITY OF NEW YORK**.
6. On or about September 20, 2007 at approximately 4:40 p.m. (Please note some police documents state the incident occurred on September 19, 2007 at 4:40 p.m. while others state it occurred on September 20, 2007 at 4:40 p.m.) in the vicinity of Bruckner Expressway entrance ramp and Longfellow Avenue for an incident that allegedly occurred in the vicinity of Lafayette Avenue and Bryant Avenue, County of the Bronx, City and State of New York, the Defendants **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, in their capacity as police officers, wrongfully touched, arrested, grabbed and handcuffed the Plaintiff **ADAM LOPEZ**, rendering him unable to perform his usual duties and activities all to his damage and detriment. At no time did the Defendants have legal cause to grab, arrest, strike or touch the Plaintiff in

the manner they did.

AS AND FOR A SECOND CAUSE OF ACTION

7. Plaintiff repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "6" with full force and effect as though set forth at length herein.
8. On September 20, 2007 at approximately 4:40 p.m. (Please note some police documents state the incident occurred on September 19, 2007 at 4:40 p.m. while others state it occurred on September 20, 2007 at 4:40 p.m.) in the vicinity of Bruckner Expressway entrance ramp and Longfellow Avenue for an incident that allegedly occurred in the vicinity of Lafayette Avenue and Bryant Avenue, County of the Bronx, City and State of New York, the Defendants, **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, jointly and severally in their capacity as police officers, approached the Plaintiff with loaded firearms and their outstretched limbs and did place the Plaintiff in imminent fear of physical contact or other grievous bodily harm in their approaching the Plaintiff notwithstanding the fact the Plaintiff committed no crime nor did he possess any weapon or pose a threat to the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "8" with full force and effect as though set forth at length herein.
10. On or about September 20, 2007 at approximately 4:40 p.m. (Please note some police documents state the incident occurred on September 19, 2007 at

4:40 p.m. while others state it occurred on September 20, 2007 at 4:40 p.m.) in the vicinity of Bruckner Expressway entrance ramp and Longfellow Avenue for an incident that allegedly occurred in the vicinity of Lafayette Avenue and Bryant Avenue, County of the Bronx, City and State of New York, the Defendants, jointly and severally, without any warrant, order, or other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty, and then took him into custody to a police station in the County of the Bronx and there charged him with various crimes. The Plaintiff was thereafter held in custody for approximately three (3) days before he was released by the Criminal Court Judge at arraignment. At all times the Plaintiff was conscious of his confinement, the Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law.

AS AND FOR A FOURTH CAUSE OF ACTION

11. Plaintiff repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "10" with full force and effect as though set forth at length herein.
12. Upon information and belief, on or about September 19, 2007 (Please note some police documents state the incident occurred on September 19, 2007 at 4:40 p.m. while others state it occurred on September 20, 2007 at 4:40 p.m.) and from that time until the dismissal of charges on or about October 18, 2007 by the Honorable Judge Robert Seewald presiding at Bronx Supreme Court, Defendants, **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, deliberately and maliciously prosecuted plaintiff, ADAM LOPEZ, an innocent man without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County,

for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

13. The Defendants, **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.
14. The commencement of these criminal proceedings under Docket #2007BX05859, was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
15. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A FIFTH CAUSE OF ACTION

16. Plaintiff repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "15" with full force and effect as though set forth at length herein.
17. Defendant **CITY OF NEW YORK** was negligent in that it failed to exercise reasonable care in the hiring, training, employment and/or supervision of the Defendants, **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**.

18. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the vicious propensities and bad disposition of Defendants **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their vicious propensities, bad disposition and not to employ officers of such vicious propensities or in the alternative, the City of New York had knowledge of the inadequate training of the individual Defendants and as such should have provided adequate supervision of these police officers/detectives to insure that they did not violate the rights of citizens or additional training to insure they did not violate the Plaintiff's civil and constitutional rights.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **P.O. DAMON FORD, SHIELD #10308 OF THE 41ST PRECINCT AND HIS P.O. PARTNER ON ARREST #BO7672768 AND DOCKET #2007BX058059 ALSO OF THE 41ST PRECINCT**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein said police officers were acting under color of

law, to wit, the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or the City of New York.

22. Plaintiff **ADAM LOPEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about September 20, 2007 (Please note some police documents state the incident occurred on September 19, 2007 at 4:40 p.m. while others state it occurred on September 20, 2007 at 4:40 p.m.) the Defendants, while effectuating the arrest of the Plaintiff, did search and seize the Plaintiff in an illegal manner, did falsely arrest the Plaintiff and did maliciously prosecute the Plaintiff without probable cause to do so. The Plaintiff also did have an assault/battery committed to his person when he was illegally seized by armed, City of New York Police Officers and was rear handcuffed.
25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
 - (1) The freedom from assault to his person;
 - (2) Freedom from battery to his person;
 - (3) Freedom from malicious prosecution;
 - (4) Freedom from false arrest;
 - (5) Freedom from loss of liberty;
 - (6) Freedom from illegal search and seizure.

26. The Defendants subjected the Plaintiff to such deprivations either in a malicious, reckless disregard or with deliberate indifference the Plaintiff's rights.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of psychological nature.

AS AND FOR A SIXTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and realleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.

29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arresting an individual when probable cause is not present.

30. Defendant **CITY OF NEW YORK** by failing to implement a policy with its Police Department and police officers that the physical safety of arrested individuals should be paramount, **the CITY OF NEW YORK's** failure to insure that this policy was implemented or if previously implemented, enforced, rendered it unable to serve its citizens, especially the Plaintiff herein.

31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to not properly arrest the Plaintiff and in fact use brutal measures to take the Plaintiff into custody. The failure of the Defendant Police Officers to take proper steps in arresting and securing the Plaintiff was done with the knowledge that no disciplinary action for their failure to take proper steps would befall the Defendants.

32. As a direct and proximate cause of the aforesaid acts, omissions, policies and customs of the **CITY OF NEW YORK**, its police officers, in particular, the police officers herein, both jointly and severally, did use excessive force against the person of the Plaintiff, violate the Plaintiff's constitutional and statutory rights to be free from cruel and unusual punishment, summary punishment in violation of the Fourth, Fifth, Eighth, Ninth and Fourteenth Amendments of the United States Constitution.
33. The amount of damage sought in the action exceeds the jurisdictional limit of all Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in an amount that exceeds the jurisdictional limit of all Courts which would otherwise have jurisdiction and attorneys' fees for bringing this case and punitive damages.

Dated: Bayside, New York
March 18, 2007

Yours, etc.

PAPA, DEPAOLA AND BROUNSTEIN
BY: JOHN R. DEPAOLA, ESQ.
42-40 Bell Boulevard
Bayside, New York 11361
718-281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Index No.:

ADAM LOPEZ,

Plaintiffs,

-against-

VERIFICATION

**THE CITY OF NEW YORK, POLICE OFFICER DAVON
WILSON, TAX REG. NO. 921861 AND SHIELD #23074
OF THE 48TH PRECINCT AND POLICE OFFICER
GARCIA, SHIELD #12607 OF THE 48TH PRECINCT,**

Defendants.

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I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **PAPA, DEPAOLA AND BROUNSTEIN**, the attorneys of record for Plaintiff(s) in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff(s) is because Plaintiff(s) resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: Bayside, New York
March 18, 2008

JOHN R. DEPAOLA